

Exchange v. Zerin (1997) 53 Cal. App. 4th 445, 460 [internal quotation marks omitted].)

Here, it is undisputed that (1) within the last year Defendants became jointly and severally indebted to Plaintiff in the amount of \$1,488,052.52 (UMF 22), (2) in exchange for those funds, Plaintiff was given a security interest in the Defendants' inventory (UMF 1,2), and (3) Defendants have failed and refused to make payments (Smith Decl. at ¶ 10.)

Plaintiff has met its initial burden with respect to its cause of action for common count. And, as Defendants have failed to file any opposition to the Motion, the Court finds that they have failed to meet their responsive evidentiary burden. Accordingly, the unopposed Motion is granted as to the fifth cause of action.

Attorney's Fees and Costs

Finally, Plaintiff seeks a judgment that it is entitled to an award of attorney's fees and costs under Civil Code § 1717(a).

"In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of th" parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).) "[T]he party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract." (Civ. Code, § 1717, subd. (b)(1).)

While some attorney's fees claims can be raised in a memorandum of costs, claims for fees under section 1717 can only be raised via motion or upon entry of a default judgment, unless the parties stipulate otherwise. (Code Civ. Proc., § 1033.5, subds. (c)(5)(A) ["Attorney's fees allowable as costs pursuant to subparagraph (A) ... of paragraph (10) of subdivision (a) shall be fixed either upon a noticed motion or upon entry of a default judgment, unless otherwise provided by stipulation of the parties"], (c)(5)(B) ["Attorney's fees awarded pursuant to Section 1717 of the Civil Code are allowable costs under Section 1032 as authorized by subparagraph (A) of paragraph (10) of subdivision (a)"].)

Plaintiff may bring a separately noticed motion for attorney fees. (*Chen v. Valstock Ventures, LLC* (2022) 81 Cal.App.5th 957, as modified (Aug. 24, 2022).

10. 9:00 AM CASE NUMBER: C24-02764

CASE NAME: SAN PABLO RETAIL PARTNERS II, LLC VS. VIAZON NORTHBAY PROPERTIES LLC

***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES TO DEMANDS FOR INSPECTION AND REQUESTS FOR ADMISSION AND FOR SANCTIONS**

FILED BY: VIAZON NORTHBAY PROPERTIES LLC

TENTATIVE RULING:

Parties to Appear.

11. 9:00 AM CASE NUMBER: C25-00108
CASE NAME: LOUIS MILNE VS. THOMAS EDGINGTON, III
*HEARING ON MOTION IN RE: FOR NEW TRIAL
FILED BY: MILNE, LOUIS J.
TENTATIVE RULING:

The Motion of Plaintiffs Louis J. Milne and Cathy J. Fitzpatrick for a New Trial is **denied**.

Background

Plaintiffs Louis J. Milne and Cathy J. Fitzpatrick filed this action on January 9, 2025, asserting wage and hour claims against Defendant Thomas Scott Edgington, III arising from Milne's employment for Defendant.

Defendant Edgington was personally served with the summons and complaint on January 15, 2025, by a process server, and then again on January 24, 2025, by the Contra Costa County Sheriff. When no responsive pleading was filed within 30 days of the second service, Plaintiffs filed a request for entry of default and default was entered on February 25, 2025.

On April 14, 2025, Defendant filed a motion for relief from default under CCP section 473(b). While Defendant's motion was pending, on April 23, 2025, Plaintiffs obtained a default judgment. Defendant later withdrew the motion after Plaintiffs objected on notice grounds, intending to refile it properly.

Defendant filed his second motion on June 9, 2025, again requesting relief under section 473(b) based on mistake, inadvertence, or excusable neglect. Defendant stated he misunderstood the response deadline, believing the case management conference date was the date by which he had to respond. Defendant also stated he was facing personal and family difficulties at the time. Defendant noted that Plaintiffs had requested entry of default on the first day allowed, without warning, even though they had his contact information. Defendant also argued that Plaintiff Fitzpatrick, a recent Berkeley Law graduate, should have understood the professional expectation to provide specific notice before taking a party's default.

The Court heard Defendant's motion to set aside default and default judgment on November 4, 2025, and issued an order granting the motion on January 8, 2026. Plaintiffs now move for a new trial. Plaintiffs contend the Court's order resulted from: "'abuse of discretion' (CCP § 657(1)), insufficiency of the evidence or the decision is 'against law' (CCP § 657(6)), and '[e]rror of law' (CCP § 657(7))" because "the court's holding on excusable neglect is based on a misunderstanding of the evidence; the court's reliance on a fairness-based duty to warn an unrepresented Defendant is undermined by binding appellate authority (which holds that no such duty exists); and the court's criticism of Plaintiffs for purportedly acting with "quiet speed" is inconsistent with mandatory rules promulgated by the Judicial Council (which require that defaults be taken quickly)." Plaintiffs ask the court to grant a new trial or for reconsideration of Judge Devine's order.